

Instalments of electricity dues — relegated to Executive Engineer under clause 4.16

High Court of Judicature at Allahabad · Division Bench · 22 April 2010 · Writ - C No. 21965 of 2010 · **Writ disposed; petitioner directed to apply to Executive Engineer under clause 4.16**

HEADNOTE

A consumer's request to pay electricity arrears in instalments and to have a deposit adjusted is a factual matter for the competent authority under clause 4.16 of the U.P. Electricity Supply Code, 2005. The writ court will not decide it. The consumer is to apply to the Executive Engineer, who is to decide on merits preferably within one month.

FACTUAL SUMMARY

Ramesh Chandra petitioned the Allahabad High Court seeking to pay outstanding electricity dues in instalments. He submitted that Rs. 25,000 already deposited should be adjusted against the demand. Counsel for the respondent Corporation appeared. The Court treated the dispute as factual and noted that the U.P. Electricity Supply Code, 2005 provides a specific procedure. Corporation counsel pointed to clause 4.16 as empowering the competent authority to consider such a request.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.16

instalment of dues — competent authority

HOLDING

A consumer's request to pay electricity dues in instalments and to adjust a sum already deposited is a factual matter for the competent authority under clause 4.16 of the U.P. Electricity Supply Code, 2005, not for the writ court. The petitioner was directed to apply to the concerned Executive Engineer within ten days; the Engineer is to decide on merits preferably within one month of receipt. ¶ 1

FLAG Court attributed instalment competence to cl. 4.16 without extracting the clause text.

PRINCIPLE TAGS

relegate-to-statutory-remedy A consumer's request to pay electricity arrears in instalments and to have a deposit adjusted is a factual matter for the competent authority under clause 4.16 of the U.P. Electricity Supply Code, 2005. The writ court will not decide it.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO PAY THE OUTSTANDING DUES IN INSTALMENTS

Left to the Executive Engineer to decide on merits under clause 4.16 ¶ 1

NOT DECIDED — WHETHER THE DEPOSITED RS. 25,000 IS TO BE ADJUSTED AGAINST THE DEMAND

Treated as a factual matter for the competent authority ¶ 1